

CITY COUNCIL MINUTES

December 6, 2010

The Cadillac City Council met in a regular meeting on Monday, December 6, 2010, at 7:00 p.m. in the Council Chambers of the Municipal Complex, 200 N. Lake Street, Cadillac, Michigan.

COUNCIL PRESENT: Schippers, Mellema, Spoelman, Stevens, Mayor Barnett

COUNCIL ABSENT: None

Staff Present: Peccia; Adams; Johnson; Roberts; Dewitt; Homier; Benson

Mayor Barnett called the regular Cadillac City Council meeting to order at 7:03 p.m.

APPROVAL OF AGENDA

2010.260 Agenda approved as amended

City Manager Marcus Peccia asked council to add, under CITY MANAGER'S REPORT, a request to set a public hearing for the Capital Improvement Program on December 20, 2010. This would be item VII-C.

Motion was made by Stevens and supported by Spoelman to approve the agenda as amended.

Motion unanimously approved.

PUBLIC COMMENTS

Terry Tatarchuk, 624 Holly Road, addressed council regarding the ballot language for the milfoil special election. He requested that other invasive species be included.

CONSENT AGENDA

2010.261 Consent agenda approved

Motion was made by Schippers and supported by Mellema to approve the consent agenda consisting of the City Council minutes from the regular meeting held November 15, 2010.

Motion unanimously approved.

PROCLAMATIONS

PUBLIC HEARINGS

At 7:11 p.m., Mayor Barnett opened a public hearing to consider the adoption of a resolution approving an application for an Industrial Facilities Tax Exemption Certificate for Inland Lakes Machine, Inc. and the Letter of Agreement which would approve the IFT Certificate in the amount of \$375,074.00 for a period of 12 years. Jay Thiebaut, representing

Inland Lakes, explained how adding additional equipment helps the company compete worldwide. The public hearing closed at 7:13 p.m.

2010.262 Inland Lakes IFT and Letter of Agreement approved, Resolution No. 1954

Motion was made by Stevens and supported by Schippers to adopt Industrial Facilities Tax Exemption Resolution No. 1954 approving an IFT application for new equipment in the amount of \$375,074.00 for a period of twelve years and to accept the Letter of Agreement.

Motion unanimously approved.

COMMUNICATIONS

2010.263 Public hearing set for Fiamm Technologies, LLC. IFT request, Resolution No. 1955

Motion was made by Schippers and supported by Spoelman to adopt Industrial Facilities Tax Exemption Resolution No. 1955, setting a public hearing for December 20, 2010 to consider the request from Fiamm Technologies, LLC for an IFT certificate in the amount of \$149,371.00

Motion unanimously approved.

CITY MANAGER'S REPORT

Deb Gillies, Chamber of Commerce Leadership Director, introduced Jason Stahl from the 2010-2011 Leadership class. Jason gave a presentation on their project which is a pavilion to be built in Kenwood Park near the lakeside. Mr. Stahl explained the project timeline and fundraising goals and asked for support from city council.

2010.264 Leadership class project supported

Motion was made by Schippers and supported by Stevens to support the 2010-2011 Leadership class project.

Motion unanimously approved.

City Attorney Mike Homier, explained to council why a curbside recycling request could not be added to the February 22, 2011 special election ballot. He explained that it is an advisory question and is already an option in the current waste hauler contract with Allied Waste that council could implement. He then explained options such as surveys, drafting an ordinance or holding public hearings. City Manager Peccia suggested holding neighborhood meetings to get the feeling of the public towards recycling.

2010.265 CIP public hearing set

Motion was made by Spoelman and supported by Mellema to set a public hearing on December 20, 2010 to approve the Five-Year Capital Improvement Program.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

No action was taken on a resolution to introduce Ordinance No. 2010-15 to prohibit smoking within the tennis court enclosures at the Diggins Hill Community Park. Council

questioned why all of the city parks were not included in the ordinance. Since the tennis courts are closed for the winter, Council decided to have city staff explore the possibility of including other city owned land and revisit the issue in the spring before the tennis courts re-open.

ADOPTION OF ORDINANCES AND RESOLUTIONS

2010.266 MDOT contract approved, Resolution No. 1956

Motion was made by Spoelman and supported by Schippers to adopt Resolution No. 1956 directing the mayor and city clerk to sign a contract with the Michigan Department of Transportation regarding construction work along Gunn Street from Mitchell Street to Seventh Street and along Seventh Street from Gunn Street to Third Avenue, and all together with necessary related work.

Motion unanimously approved.

A discussion was held regarding the wording of the proposed ballot language for the special milfoil millage election to be held February 22, 2010. Council members asked that the subject be broadened to include other invasive aquatic plant and animal species. Mayor Barnett felt the city should have a fund in the annual budget to address the milfoil problem.

2010.267 Milfoil and other invasive aquatic plant and animal species ballot language approved, Resolution No. 1957

Motion was made by Spoelman and supported by Schippers to approve the milfoil and other invasive aquatic plant and animal species ballot language for the special millage election to be held on February 22, 2011.

AYES: Spoelman, Schippers, Mellema

NAYS: Stevens, Mayor Barnett

Motion carried.

REPORTS OF BOARDS AND COMMISSIONS

MINUTES OF BOARDS AND COMMISSIONS

The minutes of the Wexford County Board of Commissioners meeting held November 3, 2010, the minutes of the Cadillac Housing Commission meeting held October 18, 2010 and the minutes from the Wexford County Airport Authority meeting held November 16, 2010 were presented for information only.

APPOINTMENTS

2010.268 Reappointments to various boards approved

Motion was made by Spoelman and supported by Stevens to reappoint Dennis Benson, Steve Frisbie and Paul Liabenow to the Local Development Finance Authority for four-year terms to expire December 3, 2014, to reappoint Delbert Packard to the Cemetery Board for a three-year term to expire January 1, 2014 and to reappoint Jan Nelson to the Election Commission for a four-year term to expire January 1, 2015.

Motion unanimously approved.

PUBLIC APPEARANCES

Gordy Maxwell, 2106 N. Boulevard, showed council two invoices that were almost the same and said that it looked like the city had been billed twice by Miller, Canfield, Paddock and Stone for professional services regarding Mr. Maxwell's milfoil special assessment appeal. Mr. Maxwell had requested the information with a FOIA. City Manager Peccia said he would look into it.

TABLED ITEMS

GOOD OF THE ORDER

City Manager Peccia thanked council for the great work session that was held prior to the city council meeting.

Council Member Mellema said "goodnight".

Council Member Stevens thanked the leadership class and the milfoil committee.

Mayor Barnett thanked Mr. Tatarchuk and the leadership class.

Council Member Schippers thanked Finance Director Owen Roberts for being so prepared to answer questions about the Capital Improvement Program.

Council Member Spoelman reminded property owners to keep their sidewalks clear of snow.

ADJOURNMENT

As there was no further business to come before the City Council, the meeting was adjourned at 9:18 p.m.

Respectfully submitted,

William S. Barnett, Mayor

Christine L. Benson, City Clerk

